

Motion to Compel Responses to Requests for Production of Documents and For Monetary Sanctions

Defendant's motion to compel responses to Requests for Production of Documents, Set One, is GRANTED.

Plaintiffs have failed to provide timely responses. Objections are waived.

Plaintiffs shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$207.50 are to be paid by Plaintiffs to Defendant within thirty (30) days of this Court's order.

Motion to Compel Responses to Interrogatories and For Monetary Sanctions

Defendant's motion to compel responses to Form Interrogatories, Sets One and Two, and Special Interrogatories, Sets One and Two, is GRANTED.

Plaintiffs have failed to provide timely responses. Objections are waived.

Plaintiffs shall serve code-compliant verified responses, without objections, within ten (10) days of the date of service of this order.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$207.50 are to be paid by Plaintiffs to Defendant within thirty (30) days of this Court's order.

Motion to Deem Requests for Admissions Admitted and For Monetary Sanctions

Defendant's motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Plaintiffs failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Defendant's Requests for Admission, Set One, are deemed admitted, unless Plaintiffs each serve, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Monetary sanctions are GRANTED.

Monetary sanctions in the amount of \$207.50 are to be paid by Plaintiffs to Defendant within thirty (30) days of this Court's order.

26CV-04287

Juan Flores Miramontes vs Felisa Cruz Rios

Hearing: Other - Application for Writ of Possession

The unopposed application for writ of possession regarding defendant Felisa Cruz Rios is GRANTED.

The court finds Plaintiffs have established the probable validity of the claim to possession of the subject property, a 2021 Food Vending Trailer, VIN: 3G9G1C827MM031743.

The court at this time is unable to grant Plaintiffs' request for a waiver of the undertaking as Plaintiffs' declaration does not sufficiently establish indigency.

Accordingly, pursuant to Code of Civil Procedure section 515.010, subdivision (a), Plaintiffs' undertaking is \$20,000.

Plaintiff is ordered to prepare and file an updated order for writ of possession, on form CD-120, consistent with this order for this Court's signature.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Short Cause Court Trials
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, September 21, 2026
1:30 pm

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-03621	Armando Diaz vs Sol Rivas, et al.
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Court Trial cross-complaint

Appearance required.

24CV-00189	Armando Diaz vs Sol Rivas, et al.
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Court Trial cross-complaint

Appearance required.